CHAPTER 9 · DEEP DIVE · A HOUSE DIVIDED

The Impeachment of Johnson

The bitter war between the president and Congress that ended one vote short of removing a president for the first time. 1868.

Name: _____ **Period:** _____ **Date:** _____

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What happens when the president and the Congress each believe the other is destroying the country?

President vs. Congress

THE CLASH

President Andrew Johnson and the Radical Republicans in Congress were at war — not with armies, but over the future of Reconstruction. Johnson vetoed civil-rights bills and the Freedmen's Bureau; Congress overrode his vetoes and seized control of Reconstruction.

To protect their allies in the government, Congress passed the Tenure of Office Act, which barred the president from firing certain officials without the Senate's approval.

Johnson Takes the Bait

THE TRIGGER

Johnson, defiant, fired Secretary of War Edwin Stanton — a Radical ally — in direct violation of the Tenure of Office Act. It was the opening his enemies had been waiting for.

The House of Representatives voted to impeach him — formally charging him with wrongdoing. Andrew Johnson became the first president in American history to be impeached.

The five military districts, 1867 — map, © ShadowDog Digital Studios (SDS Digital Collection).

The Trial in the Senate

HARPER'S WEEKLY, 1868

Under the Constitution, the Senate holds the trial. For weeks the nation watched as senators weighed whether to remove a sitting president for the first time ever.

"The Senate as a Court of Impeachment for the Trial of President Andrew Johnson" — wood engraving, Harper's Weekly, 1868, public domain (Library of Congress).

Acquitted by a Single Vote

ONE VOTE

Removing a president requires a two-thirds vote of the Senate. The vote fell one short. Seven Republicans broke with their party — fearing that removing a president over a political fight would dangerously weaken the presidency itself.

Johnson stayed in office — but as a defeated, powerless president. Congress now ran Reconstruction, and Johnson would not be nominated for another term.

A SENATOR EXPLAINING HIS VOTE TO ACQUIT

I cannot agree to destroy the harmonious working of the Constitution for the sake of getting rid of an unacceptable President.

Trace Cause and Effect

YOUR TURN

You'll follow the chain from political clash to impeachment to acquittal, and practice cause and effect — including the long-term effects of that one-vote margin.